

109	2025-01467077 Monsalvo vs. Elite Beverage International, Inc.	Motion for Terminating Sanctions The hearing on Plaintiff Diana Monsalvo’s Motion for Terminating Sanctions is continued from 8/03/26 to 10/05/26 at 2:00 PM in Department C27, unless Plaintiff files a proof of service showing that the motion was properly served on Defendants Elite Beverage International, Inc. and Steve Rice. The proof of service attached to the motion reflects that the motion was served on Defendants’ counsel at: “tnonnandin@pnbd.com” and “cathyjones@pnbd.com.” (ROA 165.) Neither address is recognized as an email address of record for Defendants’ counsel. Because the motion is not opposed, the Court cannot confirm whether the motion was properly served. If a corrected proof of service is filed before the hearing, the Court will proceed to the merits of the motion. Otherwise, the hearing on the motion is continued to 10/5/26, at set forth above, and Plaintiff is ordered to file a proper proof of service no later than 9/21/26. If continued, Plaintiff is ordered to give notice of the continued hearing.
110	2025-01467876 VM Development II LLC vs. Sea Pointe Estates Homeowners Associations	1. Demurrer to Amended Complaint 2. Motion to Strike Portions of Complaint Defendant William O’Keefe’s demurrer to Plaintiff VM Development II LLC’s first amended complaint (“FAC”) is sustained with 15 days leave to amend. [ROA # 108.] Defendant’s motion to strike punitive damage allegations and prayer is moot as to paragraph 137 in light of the demurrer ruling. The motion is granted as to paragraph 133 with 15 days leave to amend. Plaintiff’s FAC Plaintiff alleges it owns residential property governed by a homeowners’ association, Defendant Sea Pointe Estates Homeowners Association (sometimes hereinafter referred to as the “HOA”) and CC&Rs. Plaintiff sought approval to construct an ADU on the property, which ADU would front a different street from the main house. The ADU itself was approved but “[t]he HOA has functionally denied the construction of the ADU on the Property by refusing to approve the construction of reasonable and necessary structures allowing access to the ADU, including a garage, a driveway, and a short set of stairs from the driveway to the ADU front entrance (the “Access Components”).” [FAC, ¶¶ 5, 41.] This denial makes the ADU unusable as a practical matter. [<i>Id.</i>, 6.] Plaintiff alleges this denial was unsupported by the CC&Rs and unlawful for a variety of reasons. [FAC, ¶¶ 26-91.] Defendant O’Keefe is alleged to be an agent of the HOA, its “Consulting Architect.” [FAC, ¶ 19.] As an agent of the HOA, O’Keefe is alleged to have an important role in its wrongful denial of the approvals needed for the Access Components. [See, e.g., FAC, ¶¶ 19, 41, 45, 56, 72, 87, 89.] Plaintiff asserts six causes of action in total: 1. DECLARATORY RELIEF; 2. BREACH OF CONTRACT (COVENANTS, CONDITIONS, AND RESTRICTIONS AND RULES); 3. BREACH OF IMPLIED COVENANT OF GOOD FAITH AND FAIR DEALING; 4. UNFAIR BUSINESS PRACTICES;